

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND THE STATE
BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2023-7033 & 2024-9041

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
AS AN ADDICTION COUNSELOR IN THE STATE OF COLORADO OF JOSEPH W. CATHEY,
LICENSE NO. ACD.0001639

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
AS A PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF JOSEPH W. CATHEY,
LICENSE NO. LPC.0015897

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Addiction Counselor
Examiners (“ACE Board”), the State Board of Licensed Professional Counselor Examiners
(“LPCE Board”) (together “Boards” or “Boards’”) and Joseph W. Cathey
(“Respondent”), as follows:

1. The Boards have jurisdiction over the person of Respondent and the
subject matter of this Stipulation and Final Agency Order (“Order”).

2. Respondent was licensed to practice as an addiction counselor (“LAC”) in
the State of Colorado at all times relevant herein. On or about August 22, 2024,
Respondent’s license entered into Active-with conditions status and is currently Active-
with conditions.

3. Respondent was licensed to practice as a professional counselor (“LPC”) in
the State of Colorado at all times relevant herein. On or about January 22, 2025,
Respondent’s license entered into Active-Restricted status and is currently Active-
Restricted.

4. On or about January 22, 2025, Respondent entered into a Non-Disciplinary
Interim Cessation of Practice Agreement (“Interim Agreement”) (LPC only) with the
LPCE Board pending further evaluation and investigation of Respondent to determine
what further actions, if any, were warranted. This Interim Agreement remains in effect
until the effective date of this Order.

5. This Order is a full and final resolution of case numbers 2023-7033 and 2024-9041 and supersedes the previous agreement for case number 2023-7033. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.

6. Respondent admits the following:

a. Respondent failed to act within the limitations created by a substance use disorder that renders Respondent unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care.

7. By virtue of the admissions in paragraph 4 above, Respondent admits and the Boards find that Respondent violated section 12-245-224(1)(f)(II), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(f)(II) Fails to act within the limitations created by a physical illness, physical condition, or behavioral, mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.

8. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanctions that the Boards believe are necessary to protect the public health, safety, and welfare.

PROBATION

9. Respondent's licenses shall be placed on probation for a minimum period of eighteen (18) months commencing from the effective date of the previous Order for case number 2023-7033. Credit toward satisfying the period of probation shall be given only during such periods of time that Respondent is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

a. Respondent is not practicing as an LAC, LPC or engaged in the practice of a counselor in the State of Colorado;

b. Respondent is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 8 and 9 of this Order; and

c. Respondent is not otherwise in full compliance with the terms of this Order.

10. If after one (1) year of probation, Respondent has adhered to all terms and conditions of this Order, and in the event that PAS agrees, Respondent may request early termination of the probation and PAS requirement. Request for termination must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that the terms and conditions of probation and PAS have been satisfied. It is at the Boards' discretion whether or not to approve Respondent's request to terminate the probation and PAS requirement.

PEER ASSISTANCE SERVICES ("PAS")

11. As a term of this Order and Respondent's probationary status, Respondent shall successfully complete a contract with PAS for a minimum period of eighteen (18) months commencing from the effective date of the previous Order for case number 2023-7033 and the signed PAS contract, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

12. Respondent has already been evaluated by PAS to determine an appropriate monitoring contract and is currently under a contract with PAS for a minimum period of eighteen (18) months. Respondent agrees to comply with all terms and conditions determined by PAS for participation in PAS and shall comply with such terms and conditions as set forth in the signed contract.

a. Urine/Blood Screens. If required as a term of his PAS contract, Respondent shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Boards, Respondent's employer, or Respondent's treatment program monitor, at a frequency determined by Respondent's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's treatment program with Respondent's application for discharge of the probation period.

b. Other Requirements. Respondent shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS Contract signed by Respondent.

c. Releases. Respondent hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Respondent's case to the Boards upon request. Respondent shall keep all releases current and in effect.

d. Completion of Program. If Respondent satisfactorily completes the treatment program, verification to the Boards by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Boards to verify Respondent's completion of treatment. It is Respondent's responsibility to ensure that PAS submits verification to the Boards of completion of treatment. If Respondent satisfies the terms of the PAS contract as determined by PAS, Respondent may request early termination after one (1) year from the effective date of the PAS contract.

e. Withdrawal from Program. Respondent must immediately notify the Boards in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's treatment program.

TERMS AND CONDITIONS

13. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

14. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

15. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

16. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

17. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

18. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

19. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representative.

20. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

21. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

22. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

23. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

24. This Order shall be admissible as evidence at any hearing held before the Boards.

25. This Order shall be a public record in the custody of the Boards.

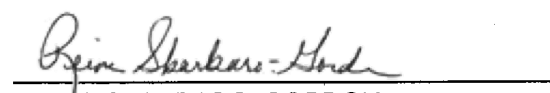
AGREED TO AND ACCEPTED BY:

RESPONDENT


JOSEPH W. CATHEY,
LICENSE NO. ACD.0001639,
LICENSE NO. LPC.0015897

AGREED TO AND ORDERED BY:

STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS AND STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


REINA SBARBARO-GORDON
Program Director

Effective this 15th day of April, 2025.